

1 HOUSE BILL NO. 345

2 INTRODUCED BY J. SCHILLINGER

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4 A BILL FOR AN ACT ENTITLED: "AN ACT CLARIFYING THE DEPARTMENT AND COMMISSION ROLES IN
5 TRANSIT; AND AMENDING SECTION 60-2-129, MCA."

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7 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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9 **Section 1.** Section 60-2-129, MCA, is amended to read:

10 **"60-2-129. Allocation of funds.** (1) The commission may allocate federal-aid highway funds for
11 projects or programs in which all or a portion of the work is on highways that are not located on the highway
12 systems defined in 60-1-103. The allocations must be made without regard to the financial district in which the
13 project or program is located.

14 (2) ~~Within the programs under its jurisdiction, the commission~~ The department shall allocate all
15 federal transit administration funds, freight assistance funds, or any funds or grants available by legislative
16 appropriation for the study, design, construction, repair, or improvement of rail or transit intermodal
17 transportation systems.

18 (3) The commission may authorize the transfer of federal funds between qualified programs,
19 including highway and transit programs.

20 (4) The commission may delegate ~~the commission~~ functions and responsibilities under this section
21 to the department."

22 - END -